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RESOLUTION NO. 2026-4628

A RESOLUTION OF THE TOWN OF SAN ANSELMO CALLING FOR A MUNICIPAL ELECTION TO BE HELD IN ITS JURISDICTION ON NOVEMBER 3, 2026 FOR THE PURPOSE OF SUBMITTING TO THE VOTERS A MEASURE AUTHORIZING THE CONTINUATION OF A SPECIAL PARCEL TAX FOR PARAMEDIC SERVICES AND REQUESTING THE MARIN COUNTY BOARD OF SUPERVISORS TO CONSOLIDATE SAID ELECTION WITH THE GENERAL ELECTION CONDUCTED ON THAT DATE

WHEREAS, the Ross Valley Paramedic Authority ("RVPA") is an eight member California Joint Powers Authority formed by agreement in 1982 pursuant to the California Joint Exercise of Powers Act, Gov. Code, §§ 6500 *et seq.*, by and among the Cities/Towns of Corte Madera, Larkspur, Fairfax, Ross, and San Anselmo; the Kentfield Fire Protection District; the Sleepy Hollow Fire Protection District; and the County of Marin ("Member Agencies") for the purpose of providing paramedic and pre-hospital emergency medical services throughout and across the Member Agencies' jurisdictional boundaries by a single, consolidated agency; and

WHEREAS, the Town of San Anselmo has been a Member Agency of RVPA since its inception over 40 years ago; and

WHEREAS, the community has consistently received responsive, high-quality paramedic and pre-hospital emergency medical care from RVPA and the Town Council wishes to maintain and ensure this service into the future; and

WHEREAS, RVPA is funded largely with tax revenues from its Member Agencies; and

WHEREAS, a statewide election will be held on November 3, 2026 ("General Election"); and

WHEREAS, California Government Code section 53722 allows the Town Council to submit to the voters a proposition for the imposition of a special tax to be approved by a two-thirds vote of the voters voting in an election on the issue; and

WHEREAS, the voters of the Town of San Anselmo have consistently voted in favor of the RVPA special tax for paramedic services and last approved such a tax in 2022; and

WHEREAS, the monies from the RVPA special tax are used exclusively for paramedic and pre-hospital emergency care services; and

WHEREAS, through the adoption of this Resolution, the Town Council of the Town of San Anselmo desires to propose to its voters the renewal of an additional four years of the special tax in the amounts specified in the Resolution at the November 3, 2026 election; and

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WHEREAS, pursuant to California Elections Code sections 10403 *et seq.*, the Town Council may request consolidation of the election with any and all other elections to be held on November 3, 2026, and may request that the Marin County Registrar of Voters perform certain election services; and

WHEREAS, the Town Council desires that the election on the special tax measure be consolidated with the Statewide General Election to be held on November 3, 2026; and

NOW, THEREFORE, BE IT RESOLVED as follows:

SECTION 1. RECITALS. The above recitals are true and correct and incorporated as findings herein.

SECTION 2. ELECTION CALLED. There is hereby called and ordered to be held in the Town of San Anselmo, California on Tuesday, November 3, 2026, a General Municipal Election to submit to the voters the Ordinance, continuing a special parcel tax for the provision of paramedic and pre-hospital emergency medical services. The Ordinance is attached hereto as Exhibit "A" and incorporated herein by reference.

SECTION 3. BALLOT QUESTION. The special parcel tax measure shall be submitted to the voters on the ballot in the form of the following question:

To maintain rapid 9-1-1 emergency response times and preserve the number of on-duty paramedics ready to respond to accidents/medical emergencies, shall the Ross Valley Paramedic Authority measure be adopted continuing for four years the paramedic services special tax of up to $107.50/residential living unit or 1,000 square feet of developed nonresidential property, adjusted up to $4/ year, generating approximately $688,000 annually, with annual audits, public spending disclosure and all funds for local paramedic services?	Yes
	No

SECTION 4. APPROVAL OF ORDINANCE. The Town Council of the Town of San Anselmo hereby approves the Ordinance, the form thereof, and its submission to the voters at the November 3, 2026 election, as attached hereto as Exhibit "A" incorporated herein by reference. The measure shall not take effect unless and until approved by a vote of at least two-thirds of the voters voting on the question at the election.

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SECTION 5. IMPARTIAL ANALYSIS. The Town Attorney is hereby directed to prepare an impartial analysis of the ballot measure showing the effect of the measure on the existing law and operation of the measure.

SECTION 6. BALLOT ARGUMENT. Pursuant to Article 4, Chapter 3, Division 9 of the Elections Code, an argument in favor of the ballot measure shall be submitted on behalf of the Town. The deadline to file arguments for or against the measure is August 17, 2026. Arguments shall be submitted to the Town Clerk and shall not exceed 300 words in length. The Town Clerk upon receipt of arguments, and after the filing deadline, shall immediately transmit copies to any known opposing parties who may then submit rebuttals. If one or more arguments are submitted in favor or against the measure, arguments shall be selected pursuant to Elections Code section 9287, and if more than one argument shares the same priority, random selection shall be used.

SECTION 7. REBUTTAL ARGUMENT. The last day for filing rebuttal arguments shall be August 24, 2026 with the Town Clerk and shall not exceed 250 words in length. Pursuant to Elections Code section 9285(a), when the arguments for and against the measure have been selected, the Town Clerk shall send a copy of the argument in favor of the measure to the authors of the argument against the measure, and a copy of an argument against the measure to the authors of the argument in favor of the measure.

SECTION 8. BALLOT FORMAT. The ballots to be used at the election shall be in the form and content as required by law.

SECTION 9. HOURS OF POLLING. The polls for the election shall be opened at 7:00 a.m. on the day of the election, and shall remain open continuously until 8:00 p.m. of the same day at such time when the polls shall be closed.

SECTION 10. REQUESTING CONSOLIDATION OF ELECTIONS. Pursuant to Elections Code section 10403, the Board of Supervisors of the County of Marin is hereby requested to consolidate the general municipal election on Tuesday, November 3, 2026 with the statewide General Election to be held on the same date, provide all services necessary for this election, and print ballots including the ballot measure set forth herein. The election shall be conducted in all respects as if one election, and one form of ballot shall be used.

SECTION 11. NOTICE TO COUNTY OF MARIN. The Town Clerk is hereby authorized and directed to file a certified copy of this Resolution with the Marin County Board of Supervisors and the Registrar of the County of Marin, pursuant to Elections Code section 10403.

SECTION 12. NOTICE OF ELECTION. The Town Clerk is hereby authorized and directed to give notice of the election as required by law.

SECTION 13. CERTIFICATION. The Town Clerk shall certify to the passage and adoption of this Resolution and enter it into the book of original resolutions.

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SECTION 14. EXECUTION. The Town Manager is hereby authorized and directed to do any and all things necessary to execute and deliver any and all documents necessary or advisable in order to complete the process for placing the measure on the November 3, 2026 ballot.

SECTION 15. SEVERABILITY. If any section, subsection, sentence, clause, phrase, or portion of this Resolution is for any reason held to be invalid or unconstitutional by the decision of any court, such decision shall not affect the validity of the remaining portions of this Resolution. The Town Council hereby declares that it would have adopted this Resolution and each section, subsection, sentence, clause, and phrase irrespective of the fact that any one or more of same be declared invalid and unconstitutional.

RESOLUTION PASSED AND ADOPTED, at a meeting of the Town Council of the Town of San Anselmo on the 9th day of June, 2026 by the following vote:

AYES:	Councilmember: Kullaway, Burke, Schlesinger, Walker, Mayor Burdo
NOES:	Councilmember: None
ABSTAIN:	Councilmember: None
ABSENT:	Councilmember: None
RECUSED:	Councilmember: None

APPROVED: Signed by: Steve Burdo B6B9DEF96589411...
Steve Burdo, Mayor

ATTEST:

Serge Avila, Town Clerk

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Exhibit "A"

AN ORDINANCE OF THE TOWN OF SAN ANSELMO ADDING CHAPTER 9 "PARAMEDIC SERVICES TAX" TO TITLE 8 "FINANCE, REVENUE, AND TAXATION" TO CONTINUE THE LEVY OF A SPECIAL TAX TO FINANCE PARAMEDIC SERVICES

The people of the Town of San Anselmo do hereby ordain as follows:

Chapter 9 "Paramedic Services Tax" is hereby added to Title 8 "Finance, Revenue, and Taxation" as follows:

8-9.01 – Title. This chapter shall be known as the "Paramedic Services Tax" and is adopted pursuant to Article XIII A, Section 4, and Article XIII C of the California Constitution and all other applicable provisions of law.

8-9.02 – Special Tax Imposed. A special tax for the purpose of paramedic and pre-hospital emergency services ("Paramedic Tax") shall be imposed on all developed parcels of real property within the Town of San Anselmo for each fiscal year commencing with fiscal year 2027-2028 as follows:

(1) Residential Uses: A tax of $107.50 per residential unit, as defined in Section 10-3.1702 of the San Anselmo Municipal Code, on a parcel shall be imposed for fiscal year 2027-2028. Beginning with fiscal year 2028-2029, the Town Council may approve an annual increase to said amount of up to $4.00 annually to a maximum of up to $118.00 for fiscal year 2030-2031.
(2) Non-Residential Uses: A tax of $107.50 per 1,000 square feet of structure on the parcel shall be imposed for fiscal year 2027-2028. Beginning with fiscal year 2028-2029, the Town Council may approve an annual increase to said amount not to exceed $4.00 annually to a maximum of up to $118.00 for fiscal year 2030-2031.

The records of the Marin County Assessor as of March 1st of each year shall determine the use and improvement of each parcel for calculation of the Paramedic Tax applicable to that parcel in the following fiscal year.

For purposes of this Ordinance, the term "parcel" shall mean a parcel of real property having a separate assessor's parcel number as shown on the last equalized assessment roll for the County of Marin.

8-9.03 – Annual Report and Approval of Tax Levy. The Town Council shall receive an annual report regarding the Paramedic Tax pursuant to California Government Code section 50075.3. In addition, the Town Council shall annually approve a resolution establishing the amount of the

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special tax levy, in an amount that does not exceed the maximum amount specified in this Ordinance. The special tax shall not be measured by value of the property.

8-9.04 – Special Account. Pursuant to California Government Code section 50075.1, the proceeds of the Paramedic Tax shall be placed in a special fund to be used solely for the purpose of providing paramedic and pre-hospital emergency services.

8-9.05 – Collection. The Paramedic Tax shall be collected in the same manner, on the same dates, and shall be subject to the same penalties and interest as other charges and taxes fixed and collected by the County of Marin on behalf of the Town of San Anselmo. Said special tax, together with all penalties and interest thereon, shall constitute a lien upon the parcel upon which it is levied until it has been paid, and said special tax, together with all penalties and interest thereon, shall, until paid, constitute a personal obligation to the Town of San Anselmo by the persons who own the parcel on the date the tax is due.

8-9.06 – Exemptions. The Paramedic Tax shall not be imposed upon any parcel that is exempt from the special tax pursuant to any provision of the Constitution or any applicable law.

8-9.07 – Termination of Provisions. This Ordinance shall be null and void as of twelve o'clock midnight, June 30, 2031, and shall have no force and effect whatsoever after said time and date. Notwithstanding the previous sentence, Section 8-9.05 relating to the collection and enforcement of liens or obligations for the Paramedic Tax previously levied hereunder, shall continue in effect until such time as the collection and enforcement procedures have been completed.

8-9.08 – Accountability Measures. The Town Finance Director shall annually file a special tax accountability report with the Town Council. The annual report shall contain both of the following: (a) the amount of funds collected and expended for the Paramedic Tax and (b) the status of any project required or authorized to be funded by such special tax, as required by California Government Code section 50075.3, as such law is amended from time to time.

8-9.09 – Appropriations Limit. The Appropriations Limit of the Town of San Anselmo established under California Constitution Article XIIIB, section 6, shall be increased by the proceeds received from the Paramedic Tax.

8-9.10 – Severability. If any provision of this Ordinance or the application thereof to any person or circumstance is held invalid or unconstitutional by any court of competent jurisdiction, such invalidity or unconstitutionality shall not affect any other provision or application, and to this end the provisions of this Ordinance are declared to be severable. The Town Council, and the electorate by referendum, do hereby declare that they would have adopted this Ordinance and each section, subsection, sentence, clause, phrase, or part or portion thereof, irrespective of the fact that any one or more sections, subsections, clauses, phrases, parts or portions thereof be declared invalid or unconstitutional.

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8-9-.11 – Effective Date. This Ordinance shall be adopted and become effective only if approved by two-thirds of the voters voting thereon at an election to be held on November 3, 2026.

8-9.12 – Authorization. The Mayor is hereby authorized to attest to the adoption of this Ordinance by signing below.

I hereby certify that the foregoing Ordinance was passed, approved, and adopted by the people of the Town of San Anselmo voting on the 3rd day of November, 2026.

By:

_____

Steve Burdo, Mayor

Attest:

_____

Serge Avila, Town Clerk